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[TENTATIVE] ORDER SUSTAINING DEFENDANT B & V ENTERPRISES, INC'S DEMURRER WITH 20 DAYS LEAVE TO AMEND AND DENYING MOTION TO STRIKE AS MOOT

I. INTRODUCTION

This matter arises from an incident that allegedly occurred on September 19, 2023, at a Super King Markets store in Glendale, California. Plaintiff Yervant Minassian ("Plaintiff") asserts causes of action against Defendants Super King Markets and B & V Enterprises, Inc. for: (1) false imprisonment; (2) discrimination in violation of the Unruh Civil Rights Act; (3) intentional infliction of emotional distress; and (4) negligence.

On May 7, 2026, Defendant B & V Enterprises, Inc. ("Defendant") filed the instant demurrer and motion to strike. Plaintiff filed an opposition on June 30, 2026, and Defendant filed a reply on July 8, 2026.

Meet and confer

Pursuant to Code of Civil Procedure section 430.41, subdivision (a), the demurring party is required to meet and confer with the party who filed the pleading at least five days before the responsive pleading is due. This must occur in person, telephone or by video conference with the aim of resolving any objections raised in the demurrer. Additionally, the demurring party must file and serve a declaration detailing the meet and confer efforts. It should be noted, however, that the failure to meet and confer is not itself grounds for sustaining or overruling a demurrer or granting or denying a motion to strike. (Code Civ. Proc., §§ 430.41, subd. (a)(4), 435.5, subd. (a)(4).)

Defense counsel declares that the parties met and conferred telephonically on April 15, 2026. (Derossi Decl., ¶12.) Thus, the Court finds this requirement has been met.

II. LEGAL STANDARD

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

CCP section 430.10(f) provides that a pleading is uncertain if it is ambiguous and unintelligible. (See Code Civ. Proc., § 430.10(f).) “A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.) “A demurrer for uncertainty will be sustained only where the complaint is so bad that defendant cannot reasonably respond—i.e., he or she cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her.” (*Weil & Brown, Civil Procedure Before Trial* (The Rutter Group) § 7:85 (emphasis in original).) “The objection of uncertainty does not go to the failure to allege sufficient facts.” (*Brea v. McGlashan* (1934) 3 Cal.App.2d 454, 459.) “It goes to the doubt as to what the pleader means by the facts alleged.” (*Id.*) “Such a demurrer should not be sustained where the allegations of the complaint are sufficiently clear to apprise the defendant of the issues which he is to meet.” (*People v. Lim* (1941) 18 Cal.2d 872, 882.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349 [court shall not “sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment”]; *Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4th 1028, 1037 [“A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment.”]; *Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768 [“When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.”].) The burden is on the complainant to show the Court that a pleading can be amended successfully. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Further, the court may, upon motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) The grounds for a motion to strike are that the pleading has irrelevant, false, or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

Civ. Code §3294:

(a) In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant.

(c) As used in this section, the following definitions shall apply:

(1) “Malice” means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

(2) “Oppression” means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

(3) “Fraud” means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

III. ANALYSIS

Defendant demurs to the Complaint in its entirety on the grounds that it is uncertain and fails to state facts sufficient to constitute any cause of action. Defendant also demurs to each of the first through fourth causes of action on the ground that each fails to state facts sufficient to constitute a cause of action. (Demurrer, pp. 2–5.)

First Cause of Action: False Imprisonment

The elements for false imprisonment are “(1) the nonconsensual, intentional confinement of a person, (2) without lawful privilege, and (3) for an appreciable period of time, however brief.” (Shoyoye v. County of Los Angeles (2012) 203 Cal.App.4th 947, 962.)

Defendant argues Plaintiff fails to allege facts demonstrating nonconsensual confinement and instead alleges only a routine loss-prevention investigation. Defendant further contends the claim is uncertain. (Demurrer, pp. 6-11.)

The Court agrees the Complaint does not presently allege facts sufficient to establish nonconsensual confinement. Although Plaintiff alleges he was “not being allowed to leave the store,” he alleges no facts identifying who prevented him from leaving, what words were spoken, or what conduct would cause a reasonable person to believe he or she was not free to leave. Rather, the Complaint alleges Plaintiff asked to speak with the manager and later requested a refund, after which an employee escorted him to the returns counter and processed the refund. (Complaint., ¶¶ 5–8.) These allegations are inconsistent with Plaintiff’s conclusory assertion that he was not permitted to leave and render the nature of the alleged confinement uncertain.

Because the Court sustains the demurrer on this basis, it need not reach Defendant’s argument regarding applicability of the shopkeeper’s privilege.

Thus, the demurrer as to the first cause of action is SUSTAINED with 20 days’ leave to amend.

Second Cause of Action: Discrimination in Violation of UNRUH Act

“All persons within the jurisdiction of this state are free and equal, and no matter what their sex, race, color, religion, ancestry, national origin, disability, medical condition, genetic information, marital status, sexual orientation, citizenship, primary language, or immigration status are entitled to the full and equal accommodations, advantages, facilities, privileges, or services in all business establishments of every kind whatsoever.” Civ. Code, § 51(b). “No business establishment of any kind whatsoever shall discriminate against . . . any person in this state on account of any characteristic listed or defined in subdivision (b) or (e) of Section 51 . . . because the person is perceived to have one or more of those characteristics, or because the person is associated with a person who has, or is perceived to have, any of those characteristics.” Id., § 51.5(a).

Defendant argues the Complaint fails to state a claim under the Unruh Civil Rights Act because it does not identify Plaintiff’s protected characteristic or allege facts demonstrating intentional discrimination, discriminatory statements, disparate treatment, or other conduct giving rise to an inference of discriminatory animus. In opposition, Plaintiff argues the Complaint sufficiently alleges discrimination and, if necessary, can be amended to allege additional facts regarding Plaintiff’s Armenian ethnicity and Defendants’ discriminatory intent. (Opposition, pp. 4-5.)

The Court agrees that the Complaint, as pled, fails to state facts sufficient to constitute a cause of action. The additional facts asserted in Plaintiff’s opposition regarding his Armenian ethnicity and Defendants’ alleged discriminatory intent are not alleged in the Complaint and therefore cannot be considered on demurrer.

Thus, the Court SUSTAINS the demurrer as to this cause of action with 20 days’ leave to amend.

Third Cause of Action: Intentional Infliction of Emotional Distress

A cause of action for IIED requires: "(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct." (Hughes v. Pair (2009) 46 Cal.4th 1035, 1050-51.) Conduct is "outrageous" when it exceeds all bounds tolerated in a civilized community (Id.). Additionally, IIED requires intentional or reckless conduct—behavior intended to inflict injury or engaged in with realization that injury will result (Davidson v. City of Westminster (1982) 32 Cal.3d 197, 210).

Defendant argues the alleged conduct, questioning Plaintiff about his purchases, detaining him briefly, the manager acting aggressively, and throwing a water bottle in Plaintiff's direction but not at him, does not, as pleaded, constitute extreme and outrageous conduct or demonstrate an intent to cause, or reckless disregard of the probability of causing, emotional distress. Defendant further argues the Complaint alleges only transient emotional upset rather than severe emotional distress. (Motion, pp. 11-13.)

In opposition, Plaintiff argues Defendants are vicariously liable for their employees' intentional torts under the doctrine of respondeat superior and contends the alleged conduct was sufficiently outrageous because Plaintiff was unjustifiably treated as a shoplifter, detained without cause, and publicly humiliated. (Opposition, pp. 5-8.)

The Court agrees that the Complaint, as presently pled, fails to state facts sufficient to constitute a cause of action for intentional infliction of emotional distress. Although Plaintiff alleges he was embarrassed, humiliated, and experienced elevated blood pressure, the alleged conduct does not rise to the level of "extreme and outrageous" conduct required to support an IIED claim. Plaintiff's reliance on *Cervantez v. J.C. Penney Co.* (1979) 24 Cal.3d 579 is unpersuasive. *Cervantez* arose on review of a nonsuit following trial, not a demurrer, and involved allegations that the plaintiff was wrongfully arrested for theft despite the defendant's knowledge, or reckless disregard, that he had committed no offense. (Id. at p. 593.) Here, by contrast, Plaintiff alleges only that store employees questioned him regarding his purchases during a suspected shoplifting investigation. These allegations do not constitute conduct so extreme as to exceed all bounds tolerated in a civilized community. Nor does the Complaint allege facts demonstrating Defendants intended to cause or acted with reckless disregard of the probability of causing, severe emotional distress.

Thus, the Court SUSTAINS the third cause of action with 20 days' leave to amend.

Fourth Cause of Action: Negligence

The elements for negligence are: (1) a legal duty owed to the plaintiff to use due care; (2) breach of duty; (3) causation; and (4) damage to the plaintiff. (*County of Santa Clara v. Atlantic Richfield Co.* (2006) 137 Cal.App.4th 292, 318.)

Defendant argues the negligence claim fails because it alleges only conclusory assertions that Defendants acted negligently without identifying a specific duty, breach, or causal connection between any negligent conduct and Plaintiff's alleged injuries. (Demurrer, p. 12.)

In opposition, Plaintiff argues the Complaint adequately alleges negligence based on Defendants' wrongful detention of Plaintiff and further contends the allegations support theories of negligent hiring, supervision, and training. (Opposition, p. 8.)

The Court agrees that the Complaint, as presently pled, fails to state facts sufficient to constitute a cause of action for negligence. The Complaint fails to identify a specific negligent act or omission independent of the intentional conduct underlying the false imprisonment and intentional infliction of emotional distress claims. Likewise, Plaintiff's theories of negligent hiring, supervision, and training are raised for the first time in opposition and are not alleged in the Complaint. A plaintiff may not amend a complaint through arguments made in opposition to a demurrer.

Thus, the Court SUSTAINS the fourth cause of action with 20 days' leave to amend.

Uncertainty

Defendant also demurs on the ground the Complaint is uncertain because it does not distinguish between the conduct allegedly committed by "Super King Markets," B & V Enterprises, Inc., and the Doe defendants, or identify which entity employed the unidentified "security guard," "woman with the clipboard," and "manager." (Notice, p. 3.)

The Court agrees. The Complaint generally attributes the alleged conduct to "Defendants" without identifying which Defendant is responsible for the acts of the unidentified employees. Thus, the Complaint is uncertain. In any amended complaint, Plaintiff shall identify, to the extent possible, the specific Defendant(s) responsible for the alleged conduct. (Code Civ. Proc., § 430.10, subd. (f).)

Motion to strike

Given that the demurrer is sustained, the motion to strike is denied as MOOT.

IV. ORDER

The Court SUSTAINS the demurrer for being uncertain and to the First, Second, Third and Fourth Causes of Action with 20 days' leave to amend.

The Court DENIES the motion to strike as moot.

Defendant is to give notice.

Dated: July 16, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT